

Defendants' Answer

Officer Nolan Rusk, the City of Alder Creek, and Chief Samuel Orton answer the April 7, 2025 complaint in simulated Civil Action No. SYN-WDVA-25-CV-0733. Every individual, institution, event, and exhibit described here is fictional. Numbered responses follow the substance of the complaint's sections rather than reproducing every allegation verbatim.

Defendants admit that Mara Ellison is an adult resident of Alder Creek; that Rusk was an Alder Creek Police Department officer acting under color of law; that the department sent Rusk and Officer Priya Vega to a welfare call at Larkspur Court Apartments on February 3, 2025; and that Rusk physically restrained Ellison. They admit that federal jurisdiction and venue are proper for the pleaded federal claim, while denying that any defendant violated the Constitution.

Defendants admit the City is a fictional municipal corporation and Orton was its police chief. They state that the official-capacity allegations against Orton duplicate the claim against the City and should not produce separate relief. They deny that the City maintained an unconstitutional policy, custom, training choice, or review practice.

Rusk admits that he used one drive-stun cycle during a rapidly developing struggle. He denies that Ellison was merely passive or that he acted without a perceived immediate threat. He asserts qualified immunity and preserves all defenses available under the governing rules.

Responses concerning the call and dispatch

Defendants admit Iris Ellison called emergency communications at approximately 19:42:11 and asked for a welfare check concerning her sister. They admit Iris reported a medication or mental-health concern and said she knew of no weapon. They further admit Dispatcher Lena Cho created a welfare event and dispatched Rusk and Vega at approximately 19:47:36. The event was not initially classified as an assault or weapons call.

Defendants deny that the original dispatch information guaranteed that no danger could arise upon contact. They state that officers responding to a welfare request must continuously assess behavior, access to objects, physical movements, and changing circumstances. They deny that a protective purpose categorically prevents officers from using reasonable control measures. They nevertheless admit that the call's noncriminal character and the absence of a reported weapon are circumstances relevant to proportionality.

Rusk admits arriving at approximately 19:52:14 with his camera active and first addressing Ellison in the exterior breezeway around 19:52:48. He admits Ellison was seated and her hands were initially empty and visible. He denies that she remained calm throughout the encounter. He states that her speech, attention, and movements caused him to believe she was in crisis and might abruptly leave or harm herself.

Defendants lack knowledge sufficient to admit Ellison's private medication history and therefore deny any characterization beyond the dispatch and produced care records.

Responses concerning first contact and restraint

Rusk admits asking Ellison to identify herself and discussing whether she needed assistance. He admits Ellison asked for space and did not initially advance toward him. He denies that the exchange remained cooperative immediately before physical contact. He states that Ellison shifted position and did not comply with directions intended to keep the encounter controlled in the narrow breezeway.

Rusk admits grasping and restraining Ellison's left wrist at approximately 19:53:02. He agrees that the seizure began no later than that physical restraint. Defendants deny, however, that the grasp was itself excessive or that the lawfulness of initiating the seizure is placed at issue by the force count. Rusk states that a wrist hold was a limited control technique responsive to the circumstances he perceived.

Rusk denies that Ellison's subsequent movement was only an involuntary recoil from pain. He states that she actively twisted her body, struck his forearm, and moved a hand toward the equipment area of his duty belt. He admits Ellison gives a different account and that she denies any strike or reach. He further admits that Vega did not have an uninterrupted view of Ellison's hands during the closest contact.

Defendants admit the recording contains Rusk's "stop pulling" statement and Ellison's "you're hurting me" statement. They deny that either phrase, standing alone, conclusively resolves the character or direction of movement.

Responses concerning the obscured interval and electronic force

Defendants admit Rusk's chest-camera image became materially obstructed from approximately 19:53:08 through 19:53:22. They admit this span includes the principal disputed movements and that the image does not visibly establish whether Ellison struck Rusk's forearm or reached toward his duty belt. They also admit Vega's recording does not reliably depict Ellison's hands throughout those seconds. They deny that visual uncertainty requires accepting Ellison's account as an adjudicated fact outside the procedural rules governing a particular motion.

Rusk admits activating one drive-stun cycle from approximately 19:53:16 through 19:53:21 while directing Ellison down. He denies using a second cycle, firing probes, striking Ellison with the device, or continuing electronic force after she was on the floor. He states that he selected the cycle because he perceived an active strike, a reach toward police equipment, and continuing physical resistance at close quarters.

Defendants admit the cleared view at approximately 19:53:22 shows Ellison down and Vega approaching to assist with hand control. They admit handcuffing was complete around 19:53:37. They deny that the speed of the sequence proves Rusk ignored a feasible alternative. Rusk states he had to respond to movements as he perceived them rather than pause after an apparent equipment reach.

Defendants deny that the audio independently proves either party's complete account. They request that each item be evaluated within its evidentiary and procedural context.

Responses concerning treatment and claimed harm

Defendants admit Ellison reported discomfort after restraint and that Paramedic Mateo Cole evaluated her. They admit the contemporaneous materials describe a left-wrist abrasion, two superficial contact burns, and a shoulder strain. They admit Alder Creek Regional Medical Center imaging identified no fracture. They deny any allegation of permanent structural injury, neurological impairment, or need for surgery unless later admissible evidence establishes it.

Defendants admit Ellison was transported for medical and crisis-related care and was not booked on an offense arising from the encounter. They deny that the charging decision retrospectively determines what Rusk reasonably perceived during the obscured interval. They also deny that the documented injuries alone decide whether the degree of force was constitutionally excessive.

Defendants lack sufficient knowledge to admit Ellison's claimed duration of pain, activity limitation, treatment expense, or emotional harm and therefore deny those allegations pending proof. They state that medical histories record what a patient reports for treatment and do not necessarily constitute clinician findings about unseen mechanics. Defendants preserve objections to causation, necessity, and amount while admitting that direct-contact energy can cause transient pain and superficial marks.

The City and Orton deny causing any injury. Rusk denies acting maliciously or with a purpose to cause harm apart from gaining control. All defendants request strict proof of recoverable damages and mitigation.

Individual defenses asserted by Rusk

Rusk denies Count One. He states that the objective reasonableness analysis must account for the entire encounter, including the welfare objective, confined physical setting, rapidly changing movements, and his asserted perception of a forearm strike and duty-belt reach. On his version, one short drive-stun cycle was a proportionate response to an immediate equipment-related threat and active resistance. He denies that less force was clearly required in those asserted circumstances.

Rusk alternatively asserts qualified immunity. He contends that no controlling law would have made it clear to every reasonable officer that a single close-contact cycle was prohibited if a seized person had just struck the officer and reached toward accessible police equipment. He recognizes that Ellison disputes those predicates. He therefore preserves both the factual defense and the legal immunity defense without asking this answer to resolve the dispute.

Rusk asserts that any compensatory award must be limited to harm legally and factually caused by his conduct. He pleads failure to mitigate to the extent supported by later evidence, without alleging that Ellison caused the constitutional violation merely by experiencing a crisis. He denies entitlement to punitive damages because he denies reckless or callous disregard of a known right.

Rusk does not assert that the body-camera image blatantly contradicts Ellison. He instead contends that other admissible evidence may persuade a factfinder to credit his account.

Municipal defenses, requested judgment, and certification

The City and Chief Orton deny Count Two. They state that department policy required officers to consider proportionality, immediate danger, subject behavior, warnings when feasible, crisis indicators, and medical attention. They deny a pattern of similar constitutional violations, a deliberately indifferent training choice, policymaker ratification, or a causal municipal custom. They further state that supervisory acceptance of a report for administrative purposes is not necessarily approval of every disputed historical assertion.

Orton asserts that the official-capacity theory is redundant of the municipal claim. He denies personal participation, and the complaint seeks no individual-capacity recovery from him. The City states that respondeat superior does not supply municipal liability under § 1983. Both municipal defendants reserve objections to discovery that is disproportionate to an adequately pleaded policy theory.

Defendants request dismissal of the complaint with prejudice, judgment in their favor, permitted costs, denial of punitive or duplicative relief, and any other appropriate remedy. They demand a jury on fact issues triable by jury. Their admissions are confined to this pleading and do not waive evidentiary objections.

Fictional defense counsel certifies electronic service on April 28, 2025 within the invented docket. This signature closes a synthetic litigation exercise only. It does not authenticate an actual police record, identify a real municipality, or offer legal advice. Unless expressly admitted, every allegation is denied.